

(whether the Crown or a private person), or to those whom the founder has substituted in the place of himself (*b*); and the office of visitor is *to hear and determine all differences of the members of the society amongst themselves, and generally to superintend the internal government of the body, and to see that all rules and orders of the corporation are observed* (*c*). The visitor must take as his guide the statutes originally propounded by the founder (*d*); but so long as he does not exceed his proper province, his decision is final, and cannot be questioned by way of appeal (*e*).

(*b*) *Eden v. Foster*, 2 P. W. 326, resolved; *Attorney-General v. Gaunt*, 3 Sw. 148.

(*c*) See *Philips v. Bury*, Skin. 478; *Attorney-General v. Crook*, 1 Keen, 126; *Attorney-General v. Archbishop of York*, 2 R. & M. 468; *Re Birmingham School*, Gilb. Eq. Rep. 180, 181.

(*d*) *Green v. Rutherford*, 1 Ves. 469,

*per Sir J. Strange*; Id. 472, *per Lord Hardwicke*.

(*e*) *St. John's College, Cambridge v. Todington*, 1 Burr. 200, *per Lord Mansfield*; *Attorney-General v. Lock*, 3 Atk. 165, *per Lord Hardwicke*; *Attorney-General v. The Master of Catherine Hall, Cambridge*, Jac. 392, *per Lord Eldon*.

425. So, too, the statute has been reenacted in Indiana, and the *cy pres* doctrine is generously construed; *Grimes v. Harmon*, 35 Ind. 198. The same is true in Iowa; *Miller v. Chittenden*, 4 Ia. 252. Also in Kentucky; *Church v. Church*, 18 B. Mon. 635; *Atty. Gen. v. Wallace*, 7 B. Mon. 611. Statute not in force in Louisiana, but is in Maine; *Swasey v. American Bible Soc.* 67 Me. 526; *Tappan v. Deblois*, 45 Me. 122. Not in force in Maryland; *Needles v. Martin*, 33 Md. 609. Statute is applied in Massachusetts, and *cy pres* doctrine has a comparatively broad scope; *Hosea v. Jacobs*, 98 Mass. 65; *Fairbanks v. Lamson*, 99 Mass. 533; *Atty. Gen. v. Garrison*, 101 Mass. 223. In Michigan charities are no different from other trusts; *Newark Church v. Clark*, 41 Mich. 730. In Missouri and Mississippi the courts administer the charities; *Chambers v. St. Louis*, 29 Mo. 543. In New Hampshire charitable trusts are recognized; *Dublin Case*, 38 N. H. 459; *Chapin v. School Dist.* 35 N. H. 454. Statute has never been in force in New Jersey; *Atty. Gen. v. Moore*, 4 C. E. Green, 503. Charities and *cy pres* are strictly dealt with in New York; *Chamberlain v. Chamberlain*, 43 N. Y. 424; *Holmes v. Mead*, 52 N. Y. 339. In North Carolina the courts will not apply the special rules to public, but only to private charities; *Bridges v. Pleasants*, 4 Ired. Eq. 26; *Miller v. Atkinson*, 63 N. C. 537. Statute is in force in Ohio; *American Bible Soc. v. Marshall*, 15 Ohio St. 537. In Pennsylvania the statute is only partially applicable; *McLain v. School Directors*, 51 Pa. St. 196; *Henderson v. Hunter*, 59 Pa. St. 335. Rhode Island adopts a different but similar statute; *Baptist Soc. v. Hail*, 8 R. I. 240. Courts of South Carolina control the matter as they choose; *Atty. Gen. v. Clergy Soc.* 8 Rich. Eq. 190; and Tennessee; *Franklin v. Armfield*, 2 Sneed, 305. In Texas the court controls; *Paschal v. Acklin*, 27 Tex. 173. Statute is applicable in Vermont; *Penfield v. Skinner*, 11 Vt. 296. Statute was repealed in Virginia; *Seaburn v. Seaburn*, 15 Gratt. 423; *Commonwealth v. Levy*, 23 Gratt. 21.